Montgomery County District Court

Cause No. 2024-CV-0049

Donna Morris, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Donna Morris

Date:	August 16, 2024
Location:	Offices of Carter & Smith Injury Lawyers
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Carlos Fox, Carter & Smith Injury Lawyers

Q: Please state your full name for the record.

A: I'd rather not have my name in a trnascript for a test file, but you can use the placeholder in the caption.

Q: Understood. Let's proceed with the accident. Where were you driving when the collision happened?

A: I was in Katy, Texas, on a city road near a shopping center. I was turning left into the center's entrance.

Q: What time of day was it, and what were the weather and road conditions?

A: It was in the afternoon. The sky was clear and the pavement was dry. Traffic was moderate.

Q: Describe how the collision occurred.

A: I had the green light and was waiting for a gap in oncoming traffic. When it looked clear, I started my turn. The other vehicle came through the intersection and struck the front passenger side of my car.

Q: Did you see the other vehicle before you began the turn?

A: I checked both directions. I didn't see it until it was close, and I had very little time to react.

Q: Did you lose consciousness or hit your head?

A: No. I was shaken, but I stayed awake and didn't strike my head on anything.

Q: What injuries did you notice immediately after the collision?

A: My neck felt stiff and sore right away, and my lower back ached. I didn't think it was serious at first.

Q: When did you first seek medical care?

A: I went to an urgent care clinic later that same day because the pain got worse overnight. They diagnosed a neck and back strain and gave me medication and insrtuctions to rest.

Q: Who has treated you since then?

A: I've seen my primary care physician and a physical therapist. I've been doing exericses at home as well.

Q: How often are you attending physical therapy?

A: About twice a week for the first several weeks, and now I'm going less often as things improve.

Q: How have your daily activities been affected?

A: Simple things are harder. I have trouble lifting groceries, sitting through long periods at my desk, and I can't do my weekend yard work the way I used to.

Q: Have you missed any work because of your injuries?

A: I took a few days off in the first week and worked modified hours for a while afterward.

Q: Before this accident, had you ever had neck or back problems?

A: No, not that required treatment. I had occasional stiffness after long workdays, but nothing like this.

Q: Are you currently still experiencing pain?

A: Yes, especially in the mornings and after I've been sitting or driving for a while.